

# General Terms and Conditions

Informative translation — the Czech version prevails.  
Poutník — GM Rent&Diggers s.r.o. · version 1.6 · effective from 1 October 2026

## 1. Introductory provisions

These terms and conditions govern the rights and obligations of the parties in vehicle rentals provided by GM Rent&Diggers s.r.o., Company ID (IČO): 23741392, VAT ID (DIČ): CZ23741392, with its registered office at Plovární 478/1, Jižní Předměstí, 301 00 Plzeň, a VAT payer, entered in the Commercial Register kept by the Regional Court in Plzeň, Section C, File 47288 (the "lessor"). Matters not covered by these terms are governed by Act No. 89/2012 Coll., the Civil Code, in particular the provisions on the hire of a means of transport (Sections 2321–2325), and Act No. 634/1992 Coll., on Consumer Protection.

## 2. Rental conditions

### 2.1 Requirements for the tenant

- Minimum age 21, category B driving licence held for at least 2 years; for the Mercedes-Benz X 250d 4×4 and Toyota Land Cruiser, minimum age 23 and driving licence held for at least 3 years
- A valid identity card or passport
- Ability to pay the refundable security deposit at collection of the vehicle (see point 3.2)

### 2.2 Second driver

A second driver who meets the same requirements as the tenant under point 2.1 may be named in the contract at no extra charge. The second driver must be expressly named in the contract, otherwise the insurance and authorisation to drive the vehicle do not extend to them.

### 2.3 Booking

A booking becomes binding once confirmed by the lessor and the deposit of 30% (the current deposit amount is shown on the booking form and the deposit invoice) of the total rental price is paid. The deposit is paid by bank transfer or QR payment as per the details on the deposit invoice issued, by the due date stated on the invoice. The deposit is non-refundable if the booking is cancelled less than 7 days before the start of the rental. Confirming the booking and paying the deposit creates an obligation to conclude a written contract for the hire of a means of transport (Section 2321(2) of the Civil Code) at the handover of the vehicle; these terms and the booking confirmation form an integral part of the contract.

## 3. Prices and payment terms

### 3.1 The rental price includes

- Basic vehicle insurance (mandatory third-party liability and comprehensive insurance)
- A Czech motorway vignette
- Basic camping equipment
- 300 km for each rental day (CZK 5/km over the limit)
- Transport of passengers up to the vehicle's number of seats
- 24/7 assistance service

### 3.2 Security deposit

The amount of the refundable security deposit varies by vehicle: CZK 30,000 for the Citroën Hobby and Mercedes X 250d, CZK 40,000 for the VW Multivan and Toyota Land Cruiser. The tenant pays the deposit by bank transfer in advance or in cash at collection of the vehicle, and the lessor refunds it within 7 days of the vehicle being returned in a faultless condition. For the Mercedes X 250d 4×4 and Toyota Land Cruiser, the deposit amount depends on the chosen protection package (see Article 6); it is paid in the same way as for the other vehicles, at the latest at collection of the vehicle. The vehicle cannot be handed over without the deposit.

### 3.3 Seasonal price list, minimum rental period and discounts

The price of the vehicle is calculated separately for each rental day (the collection day counts, the return day does not) according to the season into which that day falls:

| Season               | Period                            | Daily-rate coefficient |
|----------------------|-----------------------------------|------------------------|
| High season          | 15 Jun – 31 Aug                   | ×1.25                  |
| Shoulder season      | 1 May – 14 Jun and 1 Sep – 30 Sep | ×1.00                  |
| Off season           | 1 Oct – 19 Dec and 4 Jan – 30 Apr | ×0.70                  |
| New Year & Christmas | 20 Dec – 3 Jan                    | ×2.50                  |

If the rental spans more than one season, the price of the vehicle is the sum of the prices for the individual days at the applicable coefficient. The current base daily price for each vehicle is shown on the website under Prices. The seasonal coefficient applies only to the price of the vehicle — it does not multiply the price of accessories or vehicle delivery. The "New Year & Christmas" coefficient (×2.50) is double the high-season coefficient.

For the VW Multivan, a year-round rate equal to the shoulder-season coefficient ( $\times 1.00$ ) applies instead of the coefficients above — the daily price for this vehicle is the same all year round. The exception is the New Year & Christmas period (20 Dec – 3 Jan), when its price is double that year-round rate ( $\times 2.00$  of the base daily price). For the Mercedes-Benz X 250d 4x4 and the Toyota Land Cruiser, the off-season coefficient is  $\times 0.80$  instead of the  $\times 0.70$  above; the other seasons (high season, shoulder season, New Year & Christmas) use the same coefficient as other vehicles.

The minimum rental period is 3 days; if the rental overlaps with any day in the period 1 Jul – 31 Aug, the minimum rental period is 7 days. The maximum rental period is 60 days.

For longer rentals we offer a discount on the total price of the vehicle and accessories per day: 5% from 5 days, 10% from 10 days and 30% from 15 days, if the entire rental takes place outside the high season (15 Jun – 31 Aug), otherwise 15%. Days falling within the New Year & Christmas period (20 Dec – 3 Jan) count as high season for this discount.

### 3.4 Fee schedule

Additional services and contractual penalties (e.g. late return, soiling, refuelling, loss of keys or documents) are governed by the Fee and Charges Schedule, which is Annex No. 2 to the rental contract and is made available to the tenant before the contract is signed.

## 4. Collection and return of the vehicle

### 4.1 Collection

The tenant collects the vehicle in Prague or Plzeň, depending on current availability. The standard collection time is 14:00–18:00 and return time is 8:00–11:00, included in the price. An earlier collection (8:00–14:00) or a later return (11:00–20:00) is possible if agreed in advance (at the latest when booking), for a one-off surcharge of CZK 500 incl. VAT for each of these services under the Fee Schedule; a time outside 8:00–20:00 can only be arranged individually. For a surcharge of CZK 12/km (each way) from the nearer branch, we will deliver and collect the vehicle anywhere in the Czech Republic. The vehicle is handed over with a full tank and in a clean condition; a handover protocol is drawn up at collection, recording any damage and the vehicle's condition. For 4x4 vehicles (Mercedes-Benz X 250d, Toyota Land Cruiser), handover includes a mandatory briefing on the off-road modes of at least 15 minutes, which the tenant confirms by signing the handover protocol; the vehicle is not handed over without it.

### 4.2 Return

The tenant must return the vehicle in the same condition in which it was collected, with a full tank and at the agreed time. Late return is charged at CZK 500 for each hour or part thereof, up to a maximum of 3 hours. If the delay exceeds 3 hours, instead of the hourly fee the daily rental rate plus 50% is charged for each day or part thereof of the delay. The late-return fee does not apply to a later return agreed in advance under Article 4.1 — that is charged as the agreed service.

### 4.3 Vehicle unavailability

If the lessor is unable to hand over the vehicle on the agreed date, the tenant will be offered a replacement vehicle of a comparable category at the same price, an alternative date, or a refund of all payments made within 14 days. If the tenant cannot use the vehicle because it is unfit for use or needs repair through no fault of the tenant, no rental fee is payable for that period (Section 2324 of the Civil Code) and the proportionate amount is refunded within 14 days of the end of the rental.

## 5. Tenant's obligations

- Use the vehicle in accordance with its designated purpose
- Observe traffic regulations
- Not carry more people than permitted
- Not smoke in the vehicle
- Not hand the vehicle over to third parties
- Report defects and accidents to the lessor without delay

### 5.1 Prohibited uses

Without the lessor's prior written consent it is prohibited to: take part in races and competitions; drive the VW Multivan and Citroën Hobby off surfaced roads; sub-let the vehicle or hand it to a third party not named in the contract; carry people or goods for payment; drive the vehicle into festivals and mass events; use the vehicle to tow another vehicle or trailer.

For the Mercedes-Benz X 250d 4x4 and Toyota Land Cruiser, the tenant may only drive on surfaced and unsurfaced public roads where access is permitted (incl. forest and field tracks and snow). Without prior written consent it is additionally prohibited to: take part in races or timed events; drive in off-road parks or on training grounds; drive off the tracks (meadow, field, forest, riverbed); ford water deeper than 450 mm (Land Cruiser) or 400 mm (Mercedes X); drive on beaches, dunes or frozen bodies of water; drive with the roof tent open; and tow or recover other vehicles — the full list is in the Rental Rules. In addition: in low range L4/4L max. 25 km/h, on unpaved tracks max. 50 km/h; tyre pressure off-road at least 1.8 bar, never less, with reduced pressure max. 30 km/h; off-road driving in daylight only; maximum side slope 20°; with the roof tent max. 80 km/h. If the vehicle gets stuck, the tenant follows the Emergency Card (max. 3 recovery attempts by rocking, spinning the wheels no longer than 3 s each time, never spinning the wheels in place any longer) and then calls the lessor's 24/7 line; attempts beyond this, digging under the vehicle, and towing from anything other than the approved points are a breach of the off-road rules. A breach is subject to a contractual penalty of CZK 13,000, and the tenant pays the full resulting damage, not limited by any chosen protection package. In winter the tenant uses snow chains as required by the road signage on the road concerned.

## 5.2 Roof or bed tent

If the vehicle is fitted with a roof or bed tent, the tenant must drive only with the tent folded down and properly secured, observe a maximum speed of 80 km/h (all vehicles, including the VW Multivan), and keep the ladder and mattress with the vehicle at all times while driving.

## 6. Insurance and liability

The vehicles are insured with mandatory third-party liability insurance and comprehensive insurance with ČSOB Pojišťovna, a.s. The comprehensive-insurance excess is 10%, min. CZK 10,000, and is paid from the security deposit; the deposit itself is not the excess. If the tenant is at fault for the damage, the tenant pays the excess. The tenant is liable in full for damage caused through gross negligence or intentionally.

For the Mercedes-Benz X 250d 4x4 and Toyota Land Cruiser, the tenant may additionally choose a liability-reduction package — Bezstarostně (Carefree) or Bezstarostně+ (Carefree+) — which reduces the excess and the deposit (see the Fee Schedule, Annex No. 2 to the rental contract, for the overview and prices); only one package may be chosen at a time. Without a chosen package (Základ / Basic), the excess and deposit are as set out in this Article and point 3.2. The packages do not cover damage arising from driving in prohibited terrain (Article 5.1), while under the influence of alcohol or drugs, intentionally, by an unnamed driver, or through gross negligence. The package is not insurance — it is a contractual limitation of the tenant's liability for damage; the package price is not eligible for the long-stay discount.

Vehicles may be fitted with GPS localisation for the lessor's asset protection and for assistance; the location is read only in the event of damage, theft, non-return of the vehicle or a request for assistance, and the records are deleted within 30 days at the latest (see the Personal Data Processing Notice).

## 7. Cancellation terms

Cancellation fees are calculated from the deposit of 30% of the rental price:

- More than 30 days before the rental: 100% of the deposit refunded
- 15–30 days before the rental: 50% of the deposit refunded
- 7–14 days before the rental: 25% of the deposit refunded
- Less than 7 days: the deposit is forfeited

If the tenant has already paid the balance of the price or the security deposit, it is refunded in full within 14 days of the booking's cancellation. The cancellation terms do not apply if handover of the vehicle is prevented by an obstacle on the lessor's part or by force majeure — in that case, point 4.3 applies.

A contract for the hire of a means of transport is concluded for a specific date of performance (the rental period). In accordance with Section 1837(j) of the Civil Code, a consumer does not have the right, under this type of contract, to withdraw from it within 14 days without giving a reason; the cancellation terms set out above apply to cancelling a booking.

## 8. Travelling abroad

The rental price includes 300 km for each rental day, calculated for the whole rental (e.g. 5 days = 1,500 km). Mileage over this limit is charged at CZK 5/km based on the odometer reading at the vehicle's return. Travel abroad is possible by prior agreement with the lessor — the tenant must inform the lessor in advance of the planned route and the countries to be visited, and must arrange any motorway vignettes and permits required for the country concerned. The EU/EEA, Switzerland, the United Kingdom and the Balkans are permitted; Russia, Belarus, Ukraine, Moldova, Turkey and countries outside Europe are not permitted.

## 9. Complaints

The tenant must notify the lessor of any defect in the service without undue delay after discovering it, ideally already at return of the vehicle by noting it in the handover protocol. Rights arising from defective performance may be exercised within the statutory period under Section 1914 et seq. and Section 2205 et seq. of the Civil Code; a later notification does not affect their existence, but may make it harder to prove the defect. Complaints are submitted in writing to the lessor's address or by e-mail to [honza@frantisekdron.cz](mailto:honza@frantisekdron.cz).

If the vehicle has a defect at the time of handover or during the rental that prevents its agreed use, the tenant has the right to have the defect removed, to a reasonable discount on the rental fee for the period during which the defect persisted, to a replacement vehicle of a comparable category if available, and, in the event of a material breach of contract, to withdraw from the contract and be refunded the rental fee paid for unused days.

## 10. Out-of-court dispute resolution

If a consumer dispute arises between the lessor and a tenant who is a consumer, the consumer has the right to its out-of-court resolution under Section 14 of Act No. 634/1992 Coll., on Consumer Protection. The body responsible for out-of-court resolution of consumer disputes is the Czech Trade Inspection Authority (ČOI), based at Štěpánská 796/44, 110 00 Prague 1, website [www.coi.cz](http://www.coi.cz).

## 11. Final provisions

The lessor is entitled to amend these terms, with effect for bookings concluded after the effective date of the new version. Already-confirmed bookings are always governed by the version of these terms in effect on the date the booking was confirmed, which is made available to the tenant as a PDF stating the version and effective date. Matters not covered by these terms are governed by the Civil Code.

These General Terms and Conditions (version 1.6) take effect on 1 October 2026 ; version 1.5 applies to bookings confirmed up to and including 30 September 2026.

## 12. Gift vouchers

A gift voucher is a method of payment for a booking, not a discount code — its value can be used to pay for the rental of any vehicle, extras and dates (including New Year's Eve). A voucher cannot be combined with a discount code — no discount code applies to a booking paid with a voucher; the long-stay discount always applies. The voucher is made out to the bearer and is valid for 12 months from the day the payment is credited to the lessor's account (the exact validity is stated on the voucher).

The voucher cannot be exchanged for cash. Any unused balance remains available on the voucher until the end of its validity and can be used towards a further booking. Once the validity expires, the voucher and any unused balance are forfeited.

For voucher orders placed by 24 December 2026 inclusive, the lessor adds a Christmas bonus to the voucher's value at no extra charge (the current bonus is stated on the gift-voucher page). The voucher is activated and sent to the customer by e-mail once the payment has been credited.

## 13. Contact

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